

#	Case Name	Tentative
2	24-01440370 <i>Park vs. Vincent</i>	Motion for Order to Show Cause Defendants/cross-complainants Michael Vincent, Stephanie Violas, CP Cerritos, LLC, CP Cypress LLC, and CP Monrovia LLC's (Defendants) Motion for Order to Show Cause (OSC) Re: Contempt of Court Order is DENIED. Defendants move for an Order to Show Cause directing Plaintiff and her counsel of record to appear and show cause as why they should not be held in contempt of court and sanctioned. Legal standard Contempt which occurs outside the presence of the court is considered indirect contempt. (<i>Hanson v. Superior Court</i> (2001) 91 Cal.App.4th 75, 81.) "Willful failure to comply with an order of the court constitutes contempt. 'A trial court may take action to punish contempt under section 1218 of the Code of Civil Procedure. The elements of proof necessary to support punishment for contempt are: (1) a valid court order, (2) the alleged contemnor's knowledge of the order, and (3) noncompliance. The order must be clear, specific, and unequivocal.'" (<i>Koshek v. Malek</i> (2011) 200 Cal.App.4th 1540, 1548-1549 [cleaned up].) Analysis On 4/28/25, Plaintiff filed five applications for a right to attach order and writ of attachment. (ROA 63-67.) At the 8/7/25 hearing on the applications, the Court tentatively denied all five applications but granted Plaintiff's request to submit supplemental filing. (ROA 103, Lam Decl., ¶¶ 5-6.) Specifically, the Court permitted Plaintiff to submit supplemental filing "limited to the description of the property as to the individuals" by 8/25/25 and continued the hearing to 10/9/25. (ROA 103.) Plaintiff did not file any supplemental filings by the 8/25/25 deadline and on 9/8/25 the Court ruled the prior tentative denying the applications was final and vacated the continued hearing. (ROA 122.) Subsequently, on 9/12/25, Plaintiff filed supplemental/amended applications to address the issues raised at the 8/7/25 hearing. (ROA 127.) Plaintiff then filed a first amended complaint on 9/15/25 and in February 2026, Plaintiff refiled the applications. Plaintiff's proof of service stated she served the applications and supporting documents on Defendants by email on 2/13/26 and 2/21/26, when they had in fact not been served on those dates. (ROA 159, 171; Lam Decl., ¶ 12; Roh Decl., ¶ 3.) On 7/6/26, Plaintiff withdrew the applications. (ROA 228.) In connection with her opposition to this Motion, Plaintiff filed a Notice of Errata on 8/14/26 correcting the proof of service of the applications to 6/1/26. (ROA 243.)

Defendant contends an OCS re contempt and an ultimate finding of contempt is appropriate where Plaintiff refiled the applications despite the Court's 8/7/25 and 9/8/25 orders, violated Code of Civil Procedure section 1008, and made misrepresentation in the applications' proofs of service.

The Court does not find Plaintiff's conduct constitutes contempt. While the Court's order denied Plaintiff's initial applications, the order did not clearly, specifically, or unequivocally prohibit Plaintiff from renewing them.

Defendants contend the Court has no jurisdiction to hear the refiled writs due to Plaintiff's failure to comply with Code of Civil Procedure section 1008 regarding applications to reconsider. Defendants further contend Plaintiff's failure to comply with section 1008 is grounds for contempt pursuant to subdivision (d), which expressly provides a violation of the provision "may be punished as a contempt"

As Plaintiff's writs have been withdrawn, the issue of the Court's jurisdiction to hear them and their timeliness is moot. Additionally, "[a] trial court retains jurisdiction and the discretion to hear a renewed motion after denying previously such a motion, notwithstanding the provisions of section 1008. To so act is within the innate power of the court. While it may be error to reconsider a previous final order under section 1008, subdivision (a), where there is no showing of newly discovered evidence, apart from that subdivision a trial court, in a still pending action, is generally vested with discretion to grant a renewed motion based on a fuller statement of facts previously furnished." (*Film Packages, Inc. v. Brandywine Film Productions, Ltd.* (1987) 193 Cal.App.3d 824, 830 [cleaned up].) Notwithstanding any issues with Plaintiff's compliance with the requirements of section 1008, Plaintiff's refiled writs were not identical to those previously filed but appear to have attempted to provide a fuller statement of facts, including by providing the description of the property to be attached.

Defendants also contend a finding of contempt is appropriate pursuant to Code of Civil Procedure section 1209, subdivision (a)(5), where Plaintiff filed proofs of service falsely stating the writs were served in February 2026. Section 1209, subdivision (a)(5) includes "[d]isobedience of any lawful judgment, order, or process of the court" as an act of contempt. As discussed above, the Court does not find there has been a violation of a Court order. Additionally, Plaintiff contends while the applications were filed in February 2026, she failed to serve them. Plaintiff's counsel states he discovered the applications had not been served while preparing for the hearing, served the applications on Defendants counsel by email on 6/1/26 and prepared a proof of service reflecting that date, but failed to file it with the Court. (Roh Decl., ¶¶ 4-6.) Defendants do not dispute service was made on 6/1/26. (Lam Decl., ¶ 14.)

		Finally, Defendants move for sanctions pursuant to Code of Civil Procedure section 177.5, which provides the Court may impose monetary sanctions for a violation of a lawful court order without good cause or substantial justification. As discussed above, the Court does not find there has been a violation of a Court order.
3	23-01352268 <i>Wilkins vs. Los Alamitos Medical Center, Inc.</i>	Motion for Summary Judgment and/or Adjudication Defendant Sheri Palajwala, MD's Motion for Summary Judgment is CONTINUED to ____. The parties are ORDERED to meet and confer within 10 days of this order to schedule Dr. Lieberman's deposition within 45 days. The deposition shall be limited only the foundation of Dr. Lieberman's opinion regarding the reasonable degree of medical probability of the failure to use closed-loop communication had on Decedent's death. Where there is a legitimate question regarding the foundation of an expert witness' declaration in support of an opposition to a motion for summary judgment, the court must allow the defendant an opportunity to depose the expert regarding that issue. (<i>St. Mary Medical Center v. Superior Court</i> (1996) 50 Cal.App.4th 1531, 1540.) Here, Dr. Palajwala claims there is a question as to the foundation of Dr. Lieberman's declaration. Dr. Lieberman opines "the standard of care required closed-loop communication. In this setting, closed-loop communication means that the neurosurgeon directly communicates the time sensitive change in treatment status to the responsible hospitalist, attending physician, or another provider who is accepting responsibility for the treatment decision; the receiving provider acknowledges and understands the recommendation; and responsibility for the next action is confirmed." (Lieberman Decl., ¶ 12.) He opines Dr. Palajwala's "failure to use closed-loop communication was a substantial factor in the prolonged delay in treatment. Had she directly communicated her clearance and confirmed receipt on October 18, 2022 the physician managing the DVT and pulmonary emboli would more likely than not have been informed that the neurosurgical contraindication had been removed and would have been required to promptly initiate anticoagulation or affirmatively continue the alternative mechanical-protection plan. Instead, Mr. Wilkins remained for approximately twenty-three additional hours without anticoagulation and without an IVC filter." (Lieberman Decl., ¶ 16.) Dr. Lieberman did not consider Dr. Nashed's deposition, where he states he learned of the order clearing decedent for anticoagulants in the late morning of October 18. (Defendant's Ex. 4.) Thus, Lieberman is claiming the failure to use closed-loop communication caused the 23 hour delay, however, if Dr. Nashed knew of the cancellation, this calls into question causation of the failure to use closed-loop communication. Therefore, there is a legitimate question regarding the foundation of Dr. Lieberman's opinion regarding the reasonable degree of medical probability of the failure to use closed-loop communication had on Decedent's death.